

-

File No.: EXP202314233

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 24, 2023, a complaint was filed with the Spanish Agency for Data Protection, initially directed against ORBITAL TELEFONIA Y EQUIPOS, S.L., with NIF B39561121 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complaint is due to the receipt, on August 1, 2023, of a commercial call offering services from VODAFONE, on the line ***PHONE.1, registered in the Robinson List, from the line ***PHONE.2, with the provider servicing that line being the complained party.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer directed to ORBITAL TELEFONIA Y EQUIPOS, S.L., which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on October 20, 2023, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this transfer.

THIRD: On November 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

The operator servicing the line ***PHONE.2 is ORBITAL TELEFONIA Y EQUIPOS, S.L.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Information has been requested from ORBITAL regarding the call made from that number, having received the following response: "Our company is, in fact, the owner of the phone number ***PHONE.2, which is a virtual number sold to the company TECH TELECOM LEGAL SERVICES, S.L.

In providing this service, we have no control over the use of that number; we only make the line and a call rate available to the client.

According to our systems, there is no record of any call from the origin (***PHONE.3) to the indicated destination (***PHONE.4) on January 27, 2022.

For the reasons stated, we refer you to the aforementioned company so that you can contact them to request the information, since, as we have explained, we do not have it, and we only provide the virtual phone service, having no relation to the use made of it."

From this response, it is noted that they acknowledge that the phone number is operated by ORBITAL, but the origin and destination numbers, as well as the date, are incorrect.

Representatives of PEPEMOBILE, the operator providing service to the complainant's phone, confirm that a call was made from the number ***PHONE.2 to the receiving number ***PHONE.1 on August 1, 2023, at 4:00 PM.

Representatives of TECH TELECOM LEGAL SERVICES, S.L., state that their activity is specialized legal advice in the Telecommunications sector.

Their activity is not related to making commercial calls, with our only contracted phone line being ***PHONE.5 to perform the functions of a law firm.

Within their services, they legally represent in Spain Resellers located outside the European Union. Their activity does not focus on the resale of electronic communications services (Telephone numbering) nor on making commercial calls or developing advertising campaigns.

When indicating to the entity that according to ORBITAL, TELECOM LEGAL SERVICES, S.L., has contracted the line ***PHONE.2, they request that a copy of the contract be sent to demonstrate the line's contracting on their part, as it is false since they have never contracted the line ***PHONE.2; and therefore do not have the information related to the call made from that number to the number ***PHONE.1 on August 1, 2023, at 4:00 PM; nor identifying data (company name, tax identification number, registered office, and contact phone number, address, and contact phone number) of the entity that made the call from ***PHONE.2 on August 1, 2023, at 4:00 PM.

ORBITAL has been requested again to provide identifying data and information.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/5

contact of the holder of the line ***PHONE.2 on August 1, 2023, as well as accreditation that a call was made from the cited number to the recipient number ***PHONE.1 on August 1, 2023, at 4:00 PM, informing the Agency that “the company is, in fact, the holder of the phone number ***PHONE.2, which is a virtual number sold to the company Net Voiss, S.A.C with CIF/RUC 20545529719 where the representative for notification purposes is the company Tech Telecom Legal Services, S.L. In providing this service, we have no control over the use of said number; we only make the line and a call rate available to the client. Our systems do not have a record of any call from the origin ***PHONE.2 to the destination ***PHONE.1 on August 1, 2023, at 4:00 PM. It is worth noting that once we make the virtual number available to our clients, they can make calls with it outside of our system, using another provider.

The entity NET VOISS is located in Peru.”

LEGAL GROUNDS

I

Competence

According to the provisions established in Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Finally, the Fourth Additional Provision “Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws” establishes that: “The provisions in Title VIII and its development rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws.”

II

Final Provision Sixth, Section 2 of LGTel 11/2022

“The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force one year from the publication of this law in the "Official State Gazette." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for

commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right.”

The LGTel is applicable to this complaint as the call occurred on August 1, 2023, and the LGTel was published on June 28, 2022, coming into force on June 28, 2023.

III

Conclusion

The investigations carried out by this Agency indicate that the number in question belongs to Net Voiss, S.A.C, a company located in Peru.

It should be noted that the LGTel does not confer the Spanish Agency for Data Protection with competencies over a company located in Peru.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdictional scope of the Spanish Agency for Data Protection.

Thus, in accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to TECH TELECOM LEGAL SERVICES, S.L., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/5

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es